

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #01	CCRB Case #: 202004284	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 05/28/2020 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/4/2022	Precinct: 77
Date/Time CV Reported Thu, 05/28/2020 10:40 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/15/2020 11:22 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jonathan Martinez	10299	953059	INT CIS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Avinash Patel	05322	940551	INT CIS

Officer(s)	Allegation	Investigator Recommendation
A . POM Jonathan Martinez	Abuse: Police Officer Jonathan Martinez entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . POM Jonathan Martinez	Abuse: Police Officer Jonathan Martinez searched § 87(2)(b) in Brooklyn.	B . Exonerated

Case Summary

On May 28, 2020, § 87(2)(b) called the IAB Command Center and filed the following complaint. The complaint was received at the CCRB on June 15, 2020.

On May 28, 2020, at approximately 6:00 a.m., PO Jonathan Martinez and other officers from the Brooklyn Intel Criminal Section of the 77th Precinct entered and searched § 87(2)(b) in Brooklyn as part of a search warrant (**Allegations A and B: Abuse of Authority: Exonerated**). There were no arrests made and no summons was issued.

There is no BWC footage available for this case as the officers involved were not assigned BWC (Board Review 06).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Jonathan Martinez entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Police Officer Jonathan Martinez searched § 87(2)(b) in Brooklyn.

It is undisputed that officers entered and searched § 87(2)(b) in Brooklyn pursuant to a search warrant.

PO Jonathan Martinez obtained no-knock search warrant § 87(2)(b) (Board Review 01, 05).

New York State Criminal Procedure Law Section 690.50 states that a search warrant authorizes a police officer to conduct a search of designated premises for the purpose of seizing property, and to deliver any property obtained to the court which issued the warrant. Officers are not required to give prior notice of authority or purpose to the occupants of the premises to be searched, provided the search warrant expressly authorizes entry without notice (Board Review 02).

§ 87(2)(g). Therefore, it is recommended that **Allegations A and B be Exonerated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 03).
- PO Jonathan Martinez has been a member of service for eight years and has been the subject in 11 CCRB complaints and 34 allegations, of which five were substantiated.
 - 201402142 involved substantiated allegations of Discourtesy and Offensive Language against PO Martinez. The Board recommended Command Discipline B and the NYPD concurred.
 - 201709759 involved substantiated allegations of Gun Pointed and Abuse: Other against PO Martinez. The Board recommended charges and PO Martinez was found Not Guilty after a departmental trial.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator: Harold Rodriguez SI Harold Rodriguez 12/14/2020
Signature Print Title & Name Date

Squad Leader: Mgr. Joy Almeyda 12.14.20
Signature Print Title & Name Date

Reviewer:
Signature Print Title & Name Date